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Rules, Regulations, Orders

TITLE 7—AGRICULTURE

BUREAU OF ENTOMOLOGY AND PLANT QUARANTINE

[B. E. P. Q. 481]

AUTHORIZING THE SHIPMENT OF FRUITS AND VEGETABLES FROM HAWAII TO THE MAINLAND SUBJECT TO STERILIZATION UNDER SUPERVISION

[Approved October 19, 1938; effective November 1, 1938]

Extensive experiments have demonstrated that holding of fruits and vegetables at certain prescribed temperatures for certain periods will kill all stages of the Mediterranean fruitfly and the melon fly. Available data suggest that certain fruits and vegetables may be subjected to such treatment without affecting their palatability and marketability. Treatment in Hawaii of fruits and vegetables at prescribed temperatures under supervision of inspectors of the Bureau of Entomology and Plant Quarantine and the handling of the treated products under supervision so as to prevent reinfestation will preclude the possible introduction of these pests into the mainland and the following two treatments are prescribed:

1. Cooling until the approximate center of the fruit or vegetable reaches a temperature of 35° F. and holding the fruit or vegetable so the inside temperature does not exceed 35° F. for a period of 15 days.

2. Heating the fruit or vegetable until the approximate center reaches 110° F. and holding this temperature for a period of 8 hours.

On the basis of evidence obtained and under the authority contained in the first proviso of regulation 2 of the rules and regulations supplemental to Quarantine 13, provision is hereby made for the certification of fruits and vegetables for movement from the Territory of Hawaii into or through any State, Territory or District of the United States when treatments are applied in Hawaii at plants designated for this purpose by the United States Department of Agriculture and under the supervision of the inspectors of the Bureau of Entomology and Plant Quarantine, provided that in the issuance of permits fruits and vegetables so treated shall be moved and handled by the treating plant and loaded on ships in a manner which, in the judgment of the inspectors, will preclude fruit-fly infestation subsequent to treatment.

In authorizing the entry of fruits and vegetables into the mainland of the United States under the provisions of this circular, it should be emphasized that inexactness and carelessness in applying the treatment may result in injury to fruits or vegetables or to their rejection.

The treatment required under the provisions of this circular represents the requirements necessary for the elimination of pest risk and no liability shall be attached to the United States Department of Agriculture or to any officer or representative of that Department in event of injury resulting to fruit or vegetable offered for entry under the provisions of this circular. It should also be emphasized that evidence based on trial shipments under conditions of transportation from Hawaii is not available to demonstrate that fruits and vegetables will be marketable after the application of the treatments here authorized, and that any fruits or vegetables treated and shipped under the provisions of this circular are at the risk of the shipper.

LEE A. STRONG,
Chief.

[F. R. Doc. 38-3108; Filed, October 19, 1938; 12:10 p. m.]

TITLE 14—CIVIL AVIATION

CIVIL AERONAUTICS AUTHORITY

[Amendment No. 2 of Regulation 401-B-1]

APPLICATION FOR CERTIFICATES OF CONVENIENCE AND NECESSITY

At a session of the Civil Aeronautics Authority held at its office in Washing-

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ton, D. C., on the 10th day of October, 1938.

Acting pursuant to the authority vested in it by the Civil Aeronautics Act of 1938, particularly sections 205 (a) and 401 (b) of said Act, and finding that its action is desirable in the public interest and is necessary to carry out the provisions of, and to exercise and perform its powers and duties under, said Act, the Civil Aeronautics Authority hereby amends Regulation 401–B–1, as heretofore amended,[1] as follows:

(1) By amending the first sentence of paragraph (a) thereof so that the same shall read as follows:

"(a) *Number of copies.*—Ten copies of each application for a certificate issued pursuant to section 401 of the Act shall be filed with the Authority."

[1] 3 F. R. 2049, 2272 DI.

This amendment No. 2 of Regulation 401–B–1 shall become effective October 25, 1938.

For the Authority.

[SEAL] PAUL J. FRIZZELL, *Secretary.*

[F. R. Doc. 38–3104; Filed, October 19, 1938; 11:19 a. m.]

TEMPORARILY EXEMPTING NON-SCHEDULED OPERATIONS FROM CERTAIN PROVISIONS OF CIVIL AERONAUTICS ACT OF 1938

At a session of the Civil Aeronautics Authority held in the City of Washington, D. C., on the 18th day of October, 1938.

It appearing that:

1. No person engaged in operating aircraft is subject to the provisions of section 401 or the other provisions of Title IV of the Civil Aeronautics Act of 1938 unless such person is engaged in "the carriage by aircraft of persons or property as a common carrier for compensation or hire or in the carriage of mail by aircraft in commerce";

2. A large number of persons are engaged in a great variety of non-scheduled operations of a commercial character, some of which may be interstate or foreign in nature;

3. Questions as to the economic effect of such operations upon air transportation generally deserve additional study as to

a. the extent to which particular classes of non-scheduled operations should be made subject to or permanently exempted from the provisions of Title IV of the Act generally; and

b. suitable means of determining whether or not any particular person engaged in such non-scheduled operations is engaged in interstate, overseas or foreign air transportation;

The Authority finds that:

The present enforcement of the provisions of Title IV of the Civil Aeronautics Act of 1938 generally, in so far as such provisions are applicable to the service of air transportation rendered by such persons engaged in non-scheduled operations of aircraft, would be an undue burden on such persons by reason of the unusual circumstances affecting their operations, and such enforcement would not be in the public interest.

Now, therefore, the Civil Aeronautics Authority, acting pursuant to the authority vested in it by sections 205 (a) and 416 (b) of the Civil Aeronautics Act of 1938, adopts and issues the following regulation:

REGULATION 400–1. TEMPORARILY EXEMPTING NON-SCHEDULED OPERATIONS FROM CERTAIN PROVISIONS OF TITLE IV OF THE CIVIL AERONAUTICS ACT OF 1938

(a) Until the Authority shall adopt further rules, regulations or orders with respect to such matter, every air carrier shall be exempt from the provisions of section 401 and all other provisions of Title IV of the Civil Aeronautics Act of 1938 (except as provided in paragraph (b) of this regulation) if such air carrier does not engage in scheduled operations. Within the meaning of this regulation any operation by an air carrier shall be deemed to be a "scheduled" one, if:

(1) such operation involves the flight of one or more airplanes from a take-off point in one state (or a territory or possession of the United States) to a landing point in another such state, territory or possession or in a foreign nation; and

(2) the air carrier holds out to the public by advertisement or otherwise that it will operate one or more airplanes between such points regularly or with a reasonable degree of regularity; and

(3) the air carrier permits it to be generally understood that on such flights, and for compensation or hire, it will accept for transportation between such points such members of the public as may apply therefor or such express or other property as the public may offer.

(b) The exemptions provided by this regulation shall not be applicable to the provisions of subsection (l) of section 401 of the Act or to the reporting requirements of section 407 of the Act; *Provided*, That no provision of any rule, regulation or order that may be adopted by the Authority requiring reports pursuant to section 407 of the Act shall be deemed applicable to any non-scheduled operator unless such rule, regulation or order expressly provides that such provision is to be applicable to air carriers who are exclusively engaged in non-scheduled operations.

By the Authority.

[SEAL] PAUL J. FRIZZELL, *Secretary.*

[F. R. Doc. 38–3110; Filed, October 19, 1938; 12:46 p. m.]

TITLE 16—COMMERCIAL PRACTICES

FEDERAL TRADE COMMISSION

[Docket No. 3444]

IN THE MATTER OF GALLSTO COMPANY

SEC. 3.6 (t) *Advertising falsely or misleadingly—Qualities or properties of product.*—Representing that preparation now designated, etc., as "Doctor's prescription," is an effective remedy or competent treatment for colds, la grippe and headaches, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Gallsto Company, Docket 3444, October 7, 1938.]

SEC. 3.6 (t) *Advertising falsely or misleadingly—Qualities or properties of product.*—Representing that preparation now designated, etc., as "Gallsto," relieves, or is a competent treatment or effective remedy for, gallstones, colic, or

liver trouble, or that through use of said product surgical operations for gallstones or other disorders may be avoided or prevented, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Gallsto Company, Docket 3444, October 7, 1938.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the city of Washington, D. C., on the 7th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

IN THE MATTER OF MARY ROSENHEIMER, TRADING AS GALLSTO COMPANY

ORDER TO CEASE AND DESIST

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission and the answer of respondent, in which answer respondent admits all the material allegations of fact set forth in said complaint, and states that she waives all intervening procedure and further hearing as to said facts, and the Commission having made its findings as to the facts and conclusion that said respondent has violated the provisions of the Federal Trade Commission Act;

It is ordered, That the respondent Mary Rosenheimer, trading as Gallsto Company, or under any other trade name, her representatives, agents and employees, in connection with the offering for sale, sale and distribution of medicinal preparations, under whatever name sold, for the relief of colds, grippe, headaches, gallstones, colic and liver complaints, in interstate commerce or in the District of Columbia, do forthwith cease and desist from representing directly or by inference:

(1) That the preparation now designated and described as "Doctor's prescription" is an effective remedy or competent treatment for colds, la grippe and headaches;

(2) That the preparation now designated and described as "Gallsto" relieves, or that it is a competent treatment or effective remedy for, gallstones, colic or liver trouble;

(3) That through the use of said preparation now designated and described as "Gallsto" surgical operations for gallstones or other disorders may be avoided or prevented.

It is further ordered, That the respondent shall, within sixty (60) days after service upon her of this order, file with the Commission a report in writing, setting forth in detail the manner and form in which she has complied with this order.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 38-3094; Filed, October 18, 1938; 4:03 p. m.]

[Docket No. 3492]

IN THE MATTER OF LEE SALES COMPANY

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Supplying to, etc., others, pull cards or circulars having pull tabs thereon, or other lottery devices, for the purpose of enabling such persons to dispose of, etc., jewelry, cameras, china, silverware, razors, clothing, cosmetics, and various other articles, by the use thereof, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Lee Sales Company, Docket 3492, October 6, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices — In merchandising.* — Mailing, etc., to his agents, etc., pull cards or circulars having pull tabs thereon, or other lottery devices so prepared or printed as to enable said persons to sell, etc., jewelry, cameras, china, silverware, razors, clothing, cosmetics, and various other articles, by the use thereof, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Lee Sales Company, Docket 3492, October 6, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Selling, etc., jewelry, cameras, china, silverware, razors, clothing, cosmetics, and various other articles, by the use of pull cards or circulars having pull tabs thereon, or any other lottery device, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Lee Sales Company, Docket 3492, October 6, 1938.]

SEC. 3.6 (gg) *Advertising falsely or misleadingly—Value.*—Representing, directly or indirectly, in connection with sale of jewelry, cameras, china, silverware, razors, clothing, cosmetics, etc., that various articles of merchandise which respondent sells, etc., have a retail value greatly in excess of usual or normal retail value thereof, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Lee Sales Company, Docket 3492, October 6, 1938.]

SEC. 3.6 (i) *Advertising falsely or misleadingly—Free goods or service:* SEC. 3.72 (e) *Offering deceptive inducements to purchase—Free goods.*—Falsely representing, directly or indirectly, in connection with sale of jewelry, cameras, china, silverware, razors, clothing, cosmetics, etc., that respondent's merchandise is distributed free or without cost, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Lee Sales Company, Docket 3492, October 6, 1938.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission held at its office in the City of Washington, D. C., on the 6th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3492]

IN THE MATTER OF ADOLPH SPATER, INDIVIDUALLY AND TRADING AS LEE SALES COMPANY

ORDER TO CEASE AND DESIST

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission and the answer of the respondent, in which answer respondent admits all the material allegations set forth in said complaint and states that he waives all intervening procedure and further hearing as to said facts, and the Commission having made its findings as to the facts and conclusion that said respondent has violated the provisions of the Federal Trade Commission Act;

It is ordered, That the respondent Adolph Spater, individually and trading as Lee Sales Company, or trading under any other name, his representatives, agents and employees, in connection with the offering for sale, sale and distribution of various articles of merchandise including, among others, watches, cameras, china and silverware, lamps, razors, razor blades, pens, mirrors, dolls, dresser sets, clothing, clocks, cigarette lighters, jewelry, cosmetics, bedding and kitchenware in interstate commerce or in the District of Columbia, do forthwith cease and desist from:

(1) Supplying to or placing in the hands of others pull cards or circulars having pull tabs thereon, or other lottery devices for the purpose of enabling such persons to dispose of or sell such merchandise by the use thereof.

(2) Mailing, shipping or transporting to his agents or to distributors or to members of the public pull cards or circulars having pull tabs thereon, or other lottery devices so prepared or printed as to enable said persons to sell or distribute such merchandise by the use thereof.

(3) Selling or otherwise disposing of such merchandise by the use of pull cards or circulars having pull tabs thereon, or any other lottery device.

(4) Representing directly or indirectly that the articles of merchandise which he sells or offers for sale have a retail value greatly in excess of the usual or normal retail value thereof.

(5) Representing directly or indirectly that his merchandise is distributed free or without cost when such is not the fact.

It is further ordered, That the said respondent shall, within sixty (60) days from the date of the service of this order upon him, file with the Commission a report in writing, setting forth in detail the manner and form in which he has complied therewith.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 38-3095; Filed, October 18, 1938; 4:03 p. m.]

TITLE 29—LABOR

WAGE AND HOUR DIVISION

PART 541. REGULATIONS DEFINING AND DELIMITING THE TERMS "ANY EMPLOYEE EMPLOYED IN A BONA FIDE EXECUTIVE, ADMINISTRATIVE, PROFESSIONAL, OR LOCAL RETAILING CAPACITY, OR IN THE CAPACITY OF OUTSIDE SALESMAN" PURSUANT TO SECTION 13 (A) (1) OF THE FAIR LABOR STANDARDS ACT *

The following regulations—Part 541—(Regulations defining and delimiting the terms "any employee employed in a bona fide executive, administrative, professional, or local retailing capacity, or in the capacity of outside salesman" pursuant to Section 13 (a) (1) of the Fair Labor Standards Act) are hereby issued. Said Regulations—Part 541—shall become effective on my signing the original and after the publication thereof in the FEDERAL REGISTER and shall be in force and effect until repealed by regulations hereafter made and published by me.

Signed at Washington, D. C., this nineteenth day of October, 1938.

ELMER F. ANDREWS,
Administrator.

SECTION 541.1 *Executive and Administrative.* The term "employee employed in a bona fide executive [and] administrative . . . capacity" in Section 13 (a) (1) of the Act shall mean any employee whose primary duty is the management of the establishment, or a customarily recognized department thereof, in which he is employed, and who customarily and regularly directs the work of other employees therein, and who has the authority to hire and fire other employees or whose suggestions and recommendations as to the hiring and firing and as to the advancement and promotion or any other change of status of other employees will be given particular weight, and who customarily and regularly exercises discretionary powers, and who does no substantial amount of work of the same nature as that performed by nonexempt employees of the employer, and who is compensated for his services at not less than $30 (exclusive of board, lodging, or other facilities) for a workweek.*

SECTION 541.2 *Professional.* The term "employee employed in a bona fide . . . professional . . . capacity" in Section 13 (a) (1) of the Act shall mean any employee

(a) who is customarily and regularly engaged in work

(i) predominantly intellectual and varied in character as opposed to routine mental, manual, mechanical or physical work, and

(ii) requiring the consistent exercise of discretion and judgment both as to the manner and time of performance, as opposed to work subject to active direction and supervision, and

(iii) of such a character that the output produced or the result accomplished cannot be standardized in relation to a given period of time, and

(iv) based upon educational training in a specially organized body of knowledge as distinguished from a general academic education and from an apprenticeship and from training in the performance of routine mental, manual, mechanical or physical processes in accordance with a previously indicated or standardized formula, plan or procedure, and

(b) who does no substantial amount of work of the same nature as that performed by non-exempt employees of the employer.*

SECTION 541.3 *Local retailing capacity.* The term "employee employed in a bona fide * * * local retailing capacity" in Section 13 (a) (1) of the Act shall mean any employee who customarily and regularly is engaged in making retail sales the greater part of which are in intrastate commerce, or who performs work immediately incidental thereto, such as the wrapping or delivery of packages, and who does no substantial amount of work of the same nature as that performed by non-exempt employees of the employer.*

SECTION 541.4 *Outside Salesman.* The term "employee employed . . . in the capacity of outside salesman" in Section 13 (a) (1) of the Act shall mean any employee who customarily and regularly performs his work away from his employer's place or places of business, who is customarily and regularly engaged in making sales as defined in Section 3 (k) of the Act and who does no substantial amount of work of the same nature as that performed by non-exempt employees of the employer. For the purposes of this definition, recurrent routine deliveries, whether or not prior orders are placed by the purchases, and collections, shall not be considered sales.*

SECTION 541.5 *Petition for Amendment of Regulations.* Any person wishing a revision of any of the terms of the foregoing regulations may submit in writing to the Administrator a petition setting forth the changes desired and the reasons for proposing them. If, upon inspection of the petition, the Administrator believes that reasonable cause for amendment of the regulations is set forth, the Administrator will either schedule a hearing with due notice to interested parties, or will make other provision for affording interested parties an opportunity to present their views, either in support of or in opposition to the proposed changes. In determining such future regulations, separate treatment for different industries and for different classes of employees may be given consideration.*

[F. R. Doc. 38-3109; Filed, October 19, 1938; 12:30 p. m.]

* Sections 541 through 541.5 issued under the authority contained in Section 13 (a) (1), 52 Stat. 1060.

Notices

CIVIL AERONAUTICS AUTHORITY.

[Special Order 401-A-6]

EXEMPTING NATIONAL AIRLINES, INCORPORATED, RELATIVE TO THE AIR TRANSPORTATION SERVICE TO BE RENDERED BY SAID AIR CARRIER OVER A ROUTE FROM JACKSONVILLE, FLORIDA, TO NEW ORLEANS, LOUISIANA, VIA INTERMEDIATE CITIES

At a session of the Civil Aeronautics Authority, held at its office in Washington, D. C., on the 10th day of October, 1938.

Upon consideration by the Authority of the application of National Airlines, Incorporated, for exemption from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier from Jacksonville, Florida, to New Orleans, Louisiana, via Tallahassee, Marianna, and Pensacola, Florida, Mobile, Alabama, and Gulfport, Mississippi, the Authority is of the opinion and finds that:

(1) The applicant was, prior to May 14, 1938, and is now an air carrier engaged in the rendition of an interstate air transportation service, and as such air carrier is subject to the provisions of the Civil Aeronautics Act of 1938 and the jurisdiction of the Civil Aeronautics Authority.

(2) Said air carrier, prior to, on and since May 14, 1938, was and has been continuously engaged in the rendition of a scheduled air transportation service between Miami, Florida, and Daytona Beach, Florida, via Fort Myers, Sarasota, St. Petersburg, Tampa, Lakeland and Orlando, Florida.

(3) On or about the 12th day of April, 1938, the United States Post Office Department caused to be issued an advertisement for bidders for an air mail service over a route from Jacksonville, Florida, to New Orleans, Louisiana, via Tallahassee, Marianna, and Pensacola, Florida, Mobile, Alabama, and Gulfport, Mississippi, said route being known as route AM 39.

(4) On or about the 10th day of June, 1938, a contract for air mail service over the route described in Finding (3) was awarded by the United States Post Office Department to National Airlines, Incorporated, said air carrier being the lowest bidder therefor. By the terms of said contract, said air carrier was authorized by the Postmaster General to engage in the transportation of mail over said route AM 39. Air mail service over said route was provided for by the Act of Congress making appropriations for the Treasury Department and the Post Office Department, approved March 28, 1938. Said route is specifically set forth in section

401 (e) (2) (F) of the Civil Aeronautics Act of 1938.

(5) On or about the 15th day of July, 1938, the United States Post Office Department caused to be published a notice which provided in terms that air mail service over the route described in Finding (3) would be inaugurated on or about the 15th day of October, 1938. Said air carrier is not required, pursuant to the terms of the contract with the United States Post Office Department, to inaugurate said air mail service prior to the 10th day of December, 1938, although said air carrier desires, in the interest of the public, to commence such service as soon as possible.

(6) The present enforcement of the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier over the route described in Finding (3), would be an undue burden on such air carrier by reason of the unusual circumstances affecting the operations of such air carrier, with respect to said air transportation service, and such enforcement would not be in the public interest.

(7) Failure to exempt said air carrier from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, with respect to the air transportation service to be rendered by said air carrier over the route set forth in Finding (3) would prevent the institution of such service and would deny to the cities named in the route described in Finding (3), and the citizens thereof, the enjoyment of an air transportation service for the carriage of passengers, property and mail, all of which would be contrary to the public interest.

(8) Said air carrier should be exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier over the route described in Finding (3) for a period from the date hereof to and including 120 days from June 23, 1938, and said air carrier should be permitted to inaugurate operations over said route and render such services thereon during said period for such charges and rates as are established pursuant to law, provided, and upon the condition that, said air carrier obtains and at all times is possessed of an air carrier operating certificate issued by the Authority, prescribing the terms, conditions and limitations reasonably necessary to assure the safety of the air transportation service to be rendered over said route.

(9) Said air carrier has heretofore caused to be filed with the Authority an application for a Certificate of Convenience and Necessity, for an air transportation service over the route described in Finding (3). Said air carrier should be further exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, for all classes of traffic for which authorization is sought, in connection with said air transportation service, from the date hereof until such time as the Authority shall issue a Certificate of Convenience and Necessity for the air transportation service over such route to said air carrier or shall issue its final order denying the application of said air carrier for such certificate.

The Civil Aeronautics Authority, therefore, pursuant to the authority vested in it by sections 205 (a) and 416 (b) of the Civil Aeronautics Act of 1938, hereby makes and promulgates the following Special Order:

[Special Order 401-A-6]

EXEMPTING NATIONAL AIRLINES, INCORPORATED, FROM THE PROVISIONS OF SECTION 401 (A) OF THE CIVIL AERONAUTICS ACT OF 1938, IN SO FAR AS THE SAME ARE APPLICABLE TO THE AIR TRANSPORTATION SERVICE TO BE RENDERED BY SAID AIR CARRIER, FROM JACKSONVILLE, FLORIDA, TO NEW ORLEANS, LOUISIANA, VIA INTERMEDIATE CITIES

National Airlines, Incorporated, is hereby exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, with respect to transportation by such air carrier of mail, passengers and property, over the route between Jacksonville, Florida, and New Orleans, Louisiana, via Tallahassee, Marianna, and Pensacola, Florida, Mobile, Alabama, and Gulfport, Mississippi, during the period from the date hereof to and including 120 days from June 23, 1938. Such exemption from the provisions of said section shall continue after the expiration of such 120-day period until such time as the Authority shall issue a Certificate of Convenience and Necessity for the air transportation service over such route to said air carrier, or shall issue its final order denying the application of said air carrier for such certificate. This exemption is granted subject to the condition that, during all times while it shall continue to be in effect, said air carrier shall have a valid air carrier operating certificate issued by the Authority with respect to its operations on such route and that such air carrier shall, during all such times, comply with all applicable provisions and requirements of the Civil Air Regulations.

By the Authority.

[SEAL] PAUL J. FRIZZELL,
Secretary.

[F. R. Doc. 38-3105; Filed, October 19, 1938; 11:19 a. m.]

[Special Order 401-A-7]

EXEMPTING EASTERN AIR LINES, INC., RELATIVE TO THE AIR TRANSPORTATION SERVICE TO BE RENDERED BY SAID AIR CARRIER OVER A ROUTE FROM TAMPA, FLORIDA, TO TALLAHASSEE, FLORIDA, AND FROM TALLAHASSEE, FLORIDA, TO MEMPHIS, TENNESSEE, VIA DOTHAN, MONTGOMERY, BIRMINGHAM, AND FLORENCE-SHEFFIELD-TUSCUMBIA, ALABAMA, AND FROM TALLAHASSEE, FLORIDA, TO ATLANTA, GEORGIA, VIA ALBANY, GEORGIA

At a session of the Civil Aeronautics Authority, held at its office in Washington, D. C., on the 10th day of October, 1938.

Upon consideration by the Authority of the application of Eastern Air Lines, Inc., for exemption from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier from Tampa, Florida, to Tallahassee, Florida, and from Tallahassee, Florida, to Memphis, Tennessee, via Dothan, Montgomery, Birmingham, and Florence-Sheffield-Tuscumbia, Alabama, and from Tallahassee, Florida, to Atlanta, Georgia, via Albany, Georgia, the Authority is of the opinion and finds that:

(1) The applicant was, prior to May 14, 1938, and is now an air carrier engaged in the rendition of an interstate air transportation service, and as such air carrier is subject to the provisions of the Civil Aeronautics Act of 1938 and the jurisdiction of the Civil Aeronautics Authority.

(2) Said air carrier, prior to, on and since May 14, 1938, was and has been continuously engaged in the rendition of a scheduled airline transportation service between Houston, Texas, and Atlanta, Georgia, via intermediate cities; between Miami, Florida, and Atlanta, Georgia, via intermediate cities; between Miami, Florida, and Newark, New Jersey, via intermediate cities; between Atlanta, Georgia, and Newark, New Jersey, via intermediate cities; between Richmond, Virginia, and Newark, New Jersey, via intermediate cities; and between Atlanta, Georgia, and Chicago, Illinois, via intermediate cities; and was then and yet is possessed of a valid Scheduled Airline Competency Certificate therefor, issued by the Secretary of Commerce.

(3) On or about the 12th day of April, 1938, the United States Post Office Department caused to be issued an advertisement for bidders for an air mail service over a route from Tampa, Florida, to Tallahassee, Florida, and from Tallahassee, Florida, to Memphis, Tennessee, via Dothan, Montgomery, Birmingham, and Florence-Sheffield-Tuscumbia, Alabama, and from Tallahassee, Florida, to Atlanta, Georgia, via Albany, Georgia, said route being known as route AM 40.

(4) On or about the 26th day of May, 1938, a contract for air mail service over the route described in Finding (3) was awarded by the United States Post Office Department to Eastern Air Lines, Inc., said air carrier being the lowest bidder therefor. Thereafter, to-wit, on or about the 6th day of July, 1938, a contract providing for air mail service

over said route was executed, by the terms of which said contract, said air carrier was authorized by the Postmaster General to engage in the transportation of mail over said route AM 40. Air mail service over said route was provided for by the Act of Congress making appropriations for the Treasury Department and the Post Office Department, approved March 28, 1938. Said route is specifically set forth in section 401 (e) (2), Clause (G), of the Civil Aeronautics Act of 1938.

(5) On or about the 28th day of September, 1938, the United States Post Office Department caused to be published a notice which provided in terms that air mail service over that portion of the route described in Finding (3), between Tampa, Florida, and Tallahassee, Florida, and between Tallahassee, Florida, and Atlanta, Georgia, via Albany, Georgia, would be inaugurated on or about the 10th day of October, 1938. Said air carrier is not required, pursuant to the terms of the contract with the United States Post Office Department, to inaugurate air mail service over said route, or any portion thereof, prior to the 21st day of December, 1938, although said air carrier desires, in the interest of the public, to commence such service as soon as possible.

(6) Said air carrier has expended considerable sums of money in preparation for the inauguration of an air transportation service over the route described in Finding (3), and particularly that portion thereof over which the United States Post Office Department desires that service shall be inaugurated on October 10, 1938.

(7) The present enforcement of the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier over the route described in Finding (3), would be an undue burden on said air carrier by reason of the unusual circumstances affecting the operations of such air carrier, with respect to said air transportation service, and such enforcement would not be in the public interest.

(8) Failure to exempt said air carrier from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, with respect to the air transportation service to be rendered by said air carrier over the route set forth in Finding (3), would prevent the institution of an air transportation service over the route from Tampa, Florida, to Tallahassee, Florida, and from Tallahassee, Florida, to Atlanta, Georgia, via Albany, Georgia, on October 10, 1938, as is required in order to transport mail by air as has been ordered by the Postmaster General, and would deny to the cities on said route AM 40, and to the citizens thereof, the enjoyment of an air transportation service for the carriage of passengers, property and mail, all of which would be contrary to the public interest.

(9) Said air carrier should be exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier over the route described in Finding (3), for the period from the date hereof to and including 120 days from June 23, 1938, and said air carrier should be permitted to inaugurate operations over said route and to render such services thereon during said period for such charges and rates as are established pursuant to law, provided, and upon the condition that, said air carrier obtains and is at all times possessed of an air carrier operating certificate issued by the Authority, prescribing the terms, conditions and limitations reasonably necessary to assure the safety of the air transportation service to be rendered over said route.

(10) If said air carrier files with the Civil Aeronautics Authority, within the period set forth in Finding (9), application for a Certificate of Convenience and Necessity, for an air transportation service over the route described in Finding (3), said air carrier should be further exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, for all classes of traffic for which authorization is sought, in connection with said air transportation service, from the date of filing of such application until such time as the Authority shall issue a Certificate of Convenience and Necessity for the transportation service over such route to said air carrier, or shall issue its final order denying the application of said air carrier for such certificate.

The Civil Aeronautics Authority, therefore, pursuant to the authority vested in it by sections 205 (a) and 416 (b) of the Civil Aeronautics Act of 1938, hereby makes and promulgates the following Special Order:

[Special Order 401–A–7]

EXEMPTING EASTERN AIR LINES, INC., FROM THE PROVISIONS OF SECTION 401 (A) OF THE CIVIL AERONAUTICS ACT OF 1938, IN SO FAR AS THE SAME ARE APPLICABLE TO THE AIR TRANSPORTATION SERVICE TO BE RENDERED BY SAID AIR CARRIER OVER A ROUTE FROM TAMPA, FLORIDA, TO TALLAHASSEE, FLORIDA, AND FROM TALLAHASSEE, FLORIDA, TO MEMPHIS, TENNESSEE, VIA DOTHAN, MONTGOMERY, BIRMINGHAM, AND FLORENCE-SHEFFIELD-TUSCUMBIA, ALABAMA, AND FROM TALLAHASSEE, FLORIDA, TO ATLANTA, GEORGIA, VIA ALBANY, GEORGIA

Eastern Air Lines, Inc., is hereby exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, with respect to transportation by such air carrier of mail, passengers and property, over a route from Tampa, Florida, to Tallahassee, Florida, and from Tallahassee, Florida, to Memphis, Tennessee, via Dothan, Montgomery, Birmingham, and Florence-Sheffield-Tuscumbia, Alabama, and from Tallahassee, Florida, to Atlanta, Georgia, via Albany, Georgia, during the period from the date hereof to and including 120 days from June 23, 1938. If, within such 120 days, said air carrier shall make application to the Authority for a Certificate of Convenience and Necessity with respect to the route aforesaid, such exemption shall continue thereafter until such time as the Authority shall issue a Certificate of Convenience and Necessity for the air transportation service over such route to said air carrier, or shall issue its final order denying the application of said air carrier for such certificate. This exemption is granted subject to the condition that, during all times while it shall continue to be in effect, said air carrier shall have a valid air carrier operating certificate issued by the Authority with respect to its operations on such route and that such air carrier shall, during all such times, comply with all applicable provisions and requirements of the Civil Air Regulations.

By the Authority.

[SEAL] PAUL J. FRIZZELL,
Secretary.

[F. R. Doc. 38-3106; Filed, October 19, 1938; 11:19 a. m.]

EXEMPTING EASTERN AIR LINES, INC., RELATIVE TO THE AIR TRANSPORTATION SERVICE TO BE RENDERED BY SAID AIR CARRIER OVER A ROUTE FROM HOUSTON, TEXAS, TO BROWNSVILLE, TEXAS, VIA CORPUS CHRISTI, AND FROM HOUSTON, TEXAS, TO SAN ANTONIO, TEXAS

At a session of the Civil Aeronautics Authority, held at its office in Washington, D. C., on the 10th day of October, 1938.

Upon consideration by the Authority of the application of Eastern Air Lines, Inc., for exemption from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier from Houston, Texas, to Brownsville, Texas, via Corpus Christi, and from Houston, Texas, to San Antonio, Texas, the Authority is of the opinion and finds that:

(1) The applicant was, prior to May 14, 1938, and is now an air carrier engaged in the rendition of an interstate air transportation service, and as such air carrier is subject to the provisions of the Civil Aeronautics Act of 1938, and the jurisdiction of the Civil Aeronautics Authority.

(2) Said air carrier, prior to, on and since May 14, 1938, was and has been continuously engaged in the rendition of a scheduled airline transportation service between Houston, Texas, and Atlanta, Georgia, via intermediate cities; between Miami, Florida, and Atlanta, Georgia, via intermediate cities; between Miami, Florida, and Newark, New Jersey, via intermediate cities; between Atlanta, Georgia, and Newark, New Jersey, via

intermediate cities; between Richmond, Virginia, and Newark, New Jersey, via intermediate cities; and between Atlanta, Georgia, and Chicago, Illinois, via intermediate cities; and was then and yet is possessed of a valid Scheduled Airline Competency Certificate therefor, issued by the Secretary of Commerce.

(3) On or about the 21st day of May, 1938, the United States Post Office Department caused to be issued an advertisement for bidders for an air mail service over a route from Houston, Texas, to Brownsville, Texas, via Corpus Christi, and from Houston, Texas, to San Antonio, Texas, said route being known as route AM 42.

(4) On or about the 17th day of August, 1938, and prior to the effective date of section 401 of the Civil Aeronautics Act of 1938, a contract for air mail service over the route described in Finding (3) was awarded by the United States Post Office Department to Eastern Air Lines, Inc., said air carrier being the lowest bidder therefor. By the terms of said contract, said air carrier was authorized by the Postmaster General to engage in the transportation of mail over said route AM 42. Air mail service over said route was provided for by the Act of Congress making appropriations for the Treasury Department and the Post Office Department, approved March 28, 1938. Said route is specifically set forth in section 401 (e) (2), Clause (D), of the Civil Aeronautics Act of 1938.

(5) On or about the 28th day of September, 1938, the United States Post Office Department caused to be published a notice which provided in terms that air mail service over that portion of the route described in Finding (3), between Houston, Texas, and San Antonio, Texas, would be inaugurated on or about the 20th day of October, 1938. Said air carrier is not required, pursuant to the terms of the contract with the United States Post Office Department, to inaugurate air mail service over said route, or any portion thereof, prior to the 17th day of February, 1939, although said air carrier desires, in the interest of the public, to commence such service as soon as possible.

(6) Said air carrier has expended considerable sums of money in preparation for the inauguration of an air transportation service over the route described in Finding (3), and particularly that portion thereof over which the United States Post Office Department desires that service shall be inaugurated on October 20, 1938.

(7) The present enforcement of the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier over the route described in Finding (3), would be an undue burden on said air carrier by reason of the unusual circumstances affecting the operations of such air carrier, with respect to said air transportation service, and such enforcement would not be in the public interest.

(8) Failure to exempt said air carrier from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, with respect to the air transportation service to be rendered by said air carrier over the route set forth in Finding (3), would prevent the institution of an air transportation service over the route from Houston, Texas, to San Antonio, Texas, on October 20, 1938, as is required in order to transport mail by air as has been ordered by the Postmaster General.

(9) Said air carrier should be exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, in so far as the provisions of said section are applicable to the air transportation service to be rendered by said air carrier over the route described in Finding (3), for the period from the date hereof to and including 120 days from June 23, 1938, and said air carrier should be permitted to inaugurate operations over said route and to render such services thereon during said period for such charges and rates as are established pursuant to law, provided, and upon the condition that, said air carrier obtains and is at all times possessed of an air carrier operating certificate issued by the Authority, prescribing the terms, conditions and limitations reasonably necessary to assure the safety of the air transportation service to be rendered over said route.

(10) If said air carrier files with the Civil Aeronautics Authority, within the period set forth in Finding (9), application for a Certificate of Convenience and Necessity, for an air transportation service over the route described in Finding (3), said air carrier should be further exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, for all classes of traffic for which authorization is sought, in connection with said air transportation service, from the date of the filing of such application until such time as the Authority shall issue a Certificate of Convenience and Necessity for the air transportation service over such route to said air carrier or shall issue its final order denying the application of said air carrier for such certificate.

The Civil Aeronautics Authority, therefore, pursuant to the authority vested in it by sections 205 (a) and 416 (b) of the Civil Aeronautics Act of 1938, hereby makes and promulgates the following Special Order:

[Special Order 401-A-8]

EXEMPTING EASTERN AIR LINES, INC., FROM THE PROVISIONS OF SECTION 401 (A) OF THE CIVIL AERONAUTICS ACT OF 1938, IN SO FAR AS THE SAME ARE APPLICABLE TO THE AIR TRANSPORTATION SERVICE TO BE RENDERED BY SAID AIR CARRIER OVER A ROUTE FROM HOUSTON, TEXAS, TO BROWNSVILLE, TEXAS, VIA CORPUS CHRISTI, AND FROM HOUSTON, TEXAS, TO SAN ANTONIO, TEXAS

Eastern Air Lines, Inc., is hereby exempted from the provisions of section 401 (a) of the Civil Aeronautics Act of 1938, with respect to transportation by such air carrier of mail, passengers and property, over a route from Houston, Texas, to Brownsville, Texas, via Corpus Christi, and from Houston, Texas, to San Antonio, Texas, during the period from the date hereof to and including 120 days from June 23, 1938. If, within such 120 days, said air carrier shall make application to the Authority for a Certificate of Convenience and Necessity with respect to the route aforesaid, such exemption shall continue thereafter until such time as the Authority shall issue a Certificate of Convenience and Necessity for the air transportation service over such route to said air carrier, or shall issue its final order denying the application of said air carrier for such certificate. This exemption is granted subject to the condition that, during all times while it shall continue to be in effect, said air carrier shall have a valid air carrier operating certificate issued by the Authority with respect to its operations on such route and that such air carrier shall, during all such times, comply with all applicable provisions and requirements of the Civil Air Regulations.

By the Authority.

[SEAL] PAUL J. FRIZZELL,
Secretary.

[F. R. Doc. 38-3107; Filed, October 19, 1938; 11:19 a. m.]

FEDERAL POWER COMMISSION.

[Docket No. G-110]

IN THE MATTER OF ARKANSAS-LOUISIANA GAS COMPANY, RATE SCHEDULE FPC No. 2

ORDER POSTPONING DATE OF HEARING

OCTOBER 18, 1938.

Commissioners: Clyde L. Seavey, Acting Chairman; Claude L. Draper, Basil Manly, John W. Scott.

It appearing to the Commission that:

The Arkansas-Louisiana Gas Company has requested a postponement of the date of hearing in this proceeding, now assigned to be held on November 10, 1938, in accordance with the order of the Commission adopted October 6, 1938;[1]

The Commission *orders* that:

(A) For good cause shown, the public hearing in this proceeding, now set for November 10, 1938, be and is hereby postponed to February 10, 1939, at the same time and place.

(B) The order of the Commission of October 6, 1938, in all other respects and

[1] 3 F. R. 2452 DI.

except as to the date of the hearing set therein, shall continue in full force and effect.

By the Commission.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 38-3103; Filed, October 19, 1938; 9:54 a. m.]

FEDERAL TRADE COMMISSION.

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 17th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3415]

IN THE MATTER OF AMERICAN CLINICAL LABORATORIES, INC., OFFICIAL RESEARCH BUREAU OF NEW YORK, INC., FEDERAL RESEARCH CORPORATION, AND SHELLEY BRAVERMAN

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commisison, under an Act of Congress (38 Stat. 717; 15 U. S. C. A., Section 41),

It is ordered, That John J. Keenan, an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Monday, November 7, 1938, at ten o'clock in the forenoon of that day (eastern standard time) in Room 500, 45 Broadway, New York, New York

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 38-3096; Filed, October 19, 1938; 9:26 a. m.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 17th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3421]

IN THE MATTER OF SINNOCK & SHERRILL, INC., A CORPORATION

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U. S. C. A., Section 41),

It is ordered, That John J. Keenan, an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Friday, November 18, 1938, at ten o'clock in the forenoon of that day (eastern standard time) in Room 500, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 38-3097; Filed, October 19, 1938; 9:26 a. m.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 17th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3485]

IN THE MATTER OF JACOB GOODMAN, INDIVIDUALLY AND AS PARTNER, TRADING AS M. GOODMAN & SON, JADE HOSIERY MILLS, AND GOODY HOSE COMPANY; AND BERTHA GOODMAN, INDIVIDUALLY AND AS PARTNER, TRADING AS M. GOODMAN & SON, JADE HOSIERY MILLS, AND GOODY HOSE COMPANY

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U. S. C. A. Section 41).

It is ordered, That John J. Keenan, an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Thursday, November 10, 1938, at 10 o'clock in the forenoon of that day (eastern standard time), in Room 500, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 38-3098; Filed, October 19, 1938; 9:26 a. m.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 17th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3513]

IN THE MATTER OF MADAME MARGUERITE TURMEL, INC., A CORPORATION, ALSO TRADING AS MADAME MARGUERITE TURMEL, AND MADAME TURMEL

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U. S. C. A., Section 41),

It is ordered, That John J. Keenan, an an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Tuesday, November 8, 1938, at ten o'clock in the forenoon of that day (eastern standard time) in room 500, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 38-3099; Filed, October 19, 1938; 9:26 a. m.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 17th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3517]

IN THE MATTER OF COLUMBIA REFINING CO.

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U. S. C. A., Section 41),

It is ordered, That John J. Keenan, an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Saturday, November 12, 1938, at ten o'clock in the forenoon of that day (eastern standard time) in Room 500, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 38-3100; Filed, October 19, 1938; 9:27 a. m.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 17th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3521]

IN THE MATTER OF STEVEN V. GIMINO, TRADING AS ELITE PUBLISHING COMPANY, AND ANTHONY V. GIMINO, TRADING AS ELITE PUBLISHING COMPANY

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U. S. C. A., Section 41),

It is ordered That John J. Keenan, an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Monday, November 14, 1938, at ten o'clock in the forenoon of that day (eastern standard time) in Room 500, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 38-3101; Filed, October 19, 1938; 9:27 a. m.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 17th day of October, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

[Docket No. 3575]

IN THE MATTER OF ROSE R. SCOTT, TRADING AS KOSKOTT COMPANY

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U. S. C. A., Section 41),

It is ordered, That John J. Keenan, an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Friday, November 4, 1938, at ten o'clock in the forenoon of that day (eastern standard time) in Room 500, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 38-3102; Filed, October 19, 1938; 9:27 a. m.]

SECURITIES AND EXCHANGE COMMISSION.

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 19th day of October, A. D. 1938.

[File Nos. 32-101, 56-8, 46-112]

IN THE MATTER OF OWEGO GAS CORPORATION NY PA NJ UTILITIES COMPANY NEW YORK STATE ELECTRIC & GAS CORPORATION

NOTICE OF AND ORDER FOR HEARING

Applications pursuant to sections 6 (b) and 10 (a) (1), and Rule 12D-1 of the Public Utility Holding Company Act of 1935, having been duly filed with this Commission by the above-named parties; and it appearing that the hearings on such applications should be joined and consolidated;

It is ordered, That a hearing on such matter be held on November 14, 1938, at 10:00 o'clock in the forenoon of that day, at the Securities and Exchange Building, 1778 Pennsylvania Avenue, NW., Washington, D. C. On such day the hearing-room clerk in room 1102 will advise as to the room where such hearing will be held. At such hearing, if in respect of any declaration, cause shall be shown why such declaration shall become effective.

It is further ordered, That Charles S. Moore or any other officer or officers of the Commission designated by it for that purpose shall preside at the hearings in such matter. The officer so designated to preside at any such hearing is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of said Act and to a trial examiner under the Commission's Rules of Practice to continue or postpone said hearing from time to time.

Notice of such hearing is hereby given to such declarant or applicant and to any other person whose participation in such proceeding may be in the public interest or for the protection of investors or consumers. It is requested that any person desiring to be heard or to be admitted as a party to such proceeding shall file a notice to that effect with the Commission on or before November 9th, 1938.

The matter concerned herewith is in regard to an application of Owego Gas Corporation, a subsidiary company in the Associated Gas and Electric Company holding company system, pursuant to Section 6 (b), for exemption from the provisions of Section 6 (a) of the issue and sale to its parent, NY PA NJ Utilities Company, a registered holding company, of 1,632 shares of its own no par value common stock with a stated value of $50 per share for $81,600, an application by NY PA NJ Utilities Company, pursuant to Rule 12D-1 to sell said stock to its sub-

sidiary, New York State Electric & Gas Corporation, for $1.00, and an application by New York State Electric & Gas Corporation, filed pursuant to Section 10 (a) (1), to acquire the said securities. It is stated that the above transactions have been approved by the New York State Public Service Commission by its order of June 22, 1938.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-3111; Filed, October 19, 1938; 12:49 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 18th day of October, A. D. 1938.

[File Nos. 34-8, 52-3, 52-5, 52-9, 52-10, 59-1]

IN THE MATTER OF UTILITIES POWER & LIGHT CORPORATION AND CHARLES TRUE ADAMS, TRUSTEE

ORDER

Whereas the Commission on September 16, 1938,[1] and September 20, 1938,[2] entered certain orders and an opinion in the above entitled matters; and

Whereas Associated Investing Corporation and Associated Utilities Corporation, intervenors in these proceedings, moved for a further hearing on the orders and the opinion, as amended; and

Whereas at the further hearing the General Protective Committee appeared and requested that it be heard on further objections filed on its behalf and that it be heard on a motion that in the event the objections of the Committee were overruled the Committee be given the right to be heard in all these proceedings; and

Whereas the Commission has already granted the Committee one rehearing, has heard objections by the Committee, and has ruled thereon;

It is ordered, That the request of the Committee to be heard further on objection to the orders and opinion of September 16 and 20, 1938, is denied; and

It is further ordered, That the Commission will hear the Committee on its motion that it be given the right to be heard throughout the proceedings as distinguished from the right to intervene.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-3112; Filed, October 19, 1938; 12:49 p. m.]

[1] 3 F. R. 2258 DI.
[2] 3 F. R. 2284 DI.